

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
ELTON FRANCIS,

Plaintiff,

-against-

CITY OF NEW YORK, MOHAMMED MANIK, UNDER
COVER 343, AND JOHN OR JANE DOES 1-10,Defendants.
-----X

Index No.:

Purchased:

Plaintiff designates

Kings County as the place of trial

The basis of the venue is where the
injury occurredSUMMONS**TO THE ABOVE-NAMED DEFENDANTS:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
July 10, 2020

SIM & DEPAOLA, LLP

By: Peter Sim, Esq.

Attorneys for Plaintiff(s)

42-40 Bell Boulevard - Suite 201

Bayside, New York 11361

T: (718) 281-0400

TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

MOHAMMED MANIK of the NARCBBS
Shield #:04619, Tax ID: 948240
One Police Plaza Path,
New York, NY 10038

UNDER COVER
Shield#: 343
One Police Plaza Path,
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.
Purchased:

-----X
ELTON FRANCIS,

Plaintiff,

-against-

CITY OF NEW YORK, MOHAMMED MANIK, UNDER
COVER 343, AND JOHN OR JANE DOES 1-10,

Defendants.
-----X

VERIFIED COMPLAINT

Plaintiff, ELTON FRANCIS, by his attorneys, Sim & DePaola, LLP, for his complaint against the above Defendants, City of New York, MOHAMMED MANIK, individually and officially in his capacity as a New York City police officer, UNDER COVER 343, individually and officially in his capacity as a New York City police officer, and JOHN or JANE Doe 1-10, alleges and states as follows:

1. This is a civil rights action, in which plaintiff seeks relief, vis-à-vis 42 U.S.C. §§ 1983, 1985, 1986 and 1988, the laws of the State of New York, in addition to the self-executing clauses or implied private causes of action within the New York State Constitution, for the violations of her civil rights, as guaranteed and protected by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, as well as the Laws and Constitution of the State of New York.
2. Plaintiff's claims arise from a July 12, 2019 incident, in which Defendants, acting under color of state law, unlawfully arrested and detained Plaintiff. As a direct and proximate result, Plaintiff was unlawfully detained within the New York City Police Department, within the jurisdictional confines of Bronx County, New York. Plaintiff was deprived of his liberty for

approximately two (2) days and suffered serious physical and emotional injuries. He was maliciously prosecuted, until the dismissal of all charges, on November 20, 2019, which represents a favorable termination.

3. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court may deem just and proper.

PARTIES

4. Plaintiff, ELTON FRANCIS (hereinafter as "Plaintiff") is a Black male that resides at 947 E. 94th Street, County of Kings, State of New York.

5. Defendant, City of New York ("City"), is a municipal corporation organized under the laws of the State of New York.

6. At all times relevant hereto, Defendant City, acting through the New York City Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.

7. At all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and of the State of New York.

8. Defendant MOHAMMED MANIK ("MANIK") was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant MANIK was, at the time relevant herein, a police officer under Shield # 04619 and Tax ID 948240 in the NYPD NARCBBS UNIT, located at One

Police Plaza Path, New York NY 10038. Defendant MANIK is being sued in his individual and official capacities.

9. Defendant UNDERCOVER 343 (“UC 343”) was, at all times here relevant, a police Under Cover employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant UC 343 was, at the time relevant herein, a police officer under Shield # 343 and in the NYPD UNDERCOVER UNIT, located at One Police Plaza Path, New York NY 10038. Defendant UC 343 is being sued in his individual and official capacities.

10. At all times relevant Defendants, including MANIK, UC 343 and John and/or Jane Doe 1-10, were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names or tax registry numbers of Defendants John and/or Jane Doe 1-10, as such knowledge is in the exclusive possession of the Defendants.

11. At all times relevant herein, Defendants, including MANIK, UC 343 and John and/or Jane Doe 1-10, were acting as agents, servants and employees of the City of New York, and/or the NYPD. Defendants, including MANIK, UC 343 and John and/or Jane Doe 1-10, are being sued in their individual and official capacities.

12. At all times herein mentioned, Defendants, including MANIK, UC 343 and John and/or John Doe 1-10, were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

FACTUAL CHARGES

13. On, or about, July 12, 2019, at approximately 2:30 P.M, Plaintiff was in the vicinity of 94th Street and Farragut Road, County of Kings, State of New York.

14. Plaintiff was leaving a convenient store after buying some items and was lawfully walking down the street.
15. On said date, time, and location, Plaintiff was approached by Defendants, including MANIK, UC 343 and John and/or John Doe 1-10, and falsely told Plaintiff that there was a warrant out for his arrest.
16. At all relevant times, Defendants, including MANIK and UC 343, did not have any arrest warrants for Plaintiff.
17. Plaintiff told Defendants, including MANIK, UC 343 and John and/or John Doe 1-10, to check his identification since Plaintiff knew his record should be cleared, and he was unaware of any warrants out for his arrest.
18. Defendants, including MANIK, UC 343 and John and/or John Doe 1-10, unlawfully seized and searched Plaintiff on the scene while doing a background check of Plaintiff.
19. Defendants, including MANIK, UC 343 and John and/or John Doe 1-10, fabricated the warrant to justify their illegal search and seizure of Plaintiff.
20. Plaintiff had multiple assaults and batteries, committed to his person by Defendants, including MANIK, UC 343, and John and/or John Doe 1-10, including but not limited to, being placed in handcuffs too tightly.
21. Defendants, including MANIK, UC 343, and John and/or Jane Doe 1-10, then physically removed Plaintiff and transported him to the 69th Precinct, all against his will and without legal authority, namely without probable cause or a judicially authorized arrest warrant.
22. Upon arrival at the 69th Precinct, Plaintiff was subjected to unconsented physical contact and procedures, including being photographed, fingerprinted, and an unlawful strip search.

These actions were either conducted by defendants or at the direction of Defendants, including MANIK, UC 343, and John and/or Jane Doe 1-10.

23. After Plaintiff was detained in a cell for approximately two (2) to three (3) hours, Defendants, including MANIK, UC 343, John and/or Jane Doe 1-10, moved Plaintiff to an interrogation room at the 69th Precinct.
24. Defendants, including MANIK, UC 343, unlawfully subjected Plaintiff to an illegal interrogation by conducting the interrogation without the presence of counsel and without informing Plaintiff of his Miranda rights, pursuant to *Miranda v. Arizona*, 384 U.S. 436 (1966).
25. Defendants, including MANIK, UC 343 and John and/or Jane Doe 1-10, fabricated a false narrative, in which they claimed eight (8) months prior to this arrest, Plaintiff had sold marijuana to an undercover cop, when they knew such claims to be untrue and complete fabrications.
26. At no time did Plaintiff possess any marijuana.
27. Defendants, including MANIK, UC 343, and John and/or Jane Doe 1-10, proceeded to unlawfully accuse Plaintiff of knowing where to obtain drugs such as cocaine and marijuana, and firearms. Plaintiff stated to Defendants he had no knowledge of such things they were stating.
28. Defendants, including MANIK, UC 343, and John and/or Jane Doe 1-10, then subjected Plaintiff to illegal interrogation tactics by threatening him with loss of his liberty and a protracted criminal prosecution, if he did not comply with defendants' demands, one of which were to have Plaintiff go undercover for defendants and retrieve paraphernalia such as cocaine, marijuana, and firearms from defendants' true suspects. Defendants even offered money to Plaintiff in exchange.

29. Defendants, including MANIK, UC 343, and John and/or Jane Doe 1-10, retaliated against Plaintiff by forwarding fabricated evidence to prosecutors, namely that Defendant UC 343, had given money to Plaintiff in exchange for marijuana.
30. Defendants, including MANIK, UC 343, and John and/or Jane Doe 1-10, knowingly and intentionally made false statement and allegations against the Plaintiff and thus, Plaintiff was falsely arrested and charged with the unlawful possession of marijuana and criminal selling of marijuana, that Defendants knew to be false since Plaintiff was not selling nor in criminal possession of any contraband.
31. Plaintiff was not in actual, constructive, or statutory possession of marijuana, and had not committed any crime or violations of the law.
32. Defendants, including MANIK, UC 343, and John and/or Jane Doe 1-10, were fully aware that Plaintiff did not have any illegal contraband on his person or in his possession, but Defendants, including MANIK, UC 343, and John and/or Jane Doe 1-10, knowingly and intentionally decided to fabricate said narrative to justify an otherwise invalid arrest and to ensure that Plaintiff was maliciously prosecuted.
33. Defendant, MOHAMMED MANIK was Plaintiff's arresting officer and signed his criminal court complaint under Arrest NO. K19635696, knowingly and falsely accusing Plaintiff of Criminal Sale of Marijuana in the fourth degree, and Unlawful Possession of Marijuana, all of which Defendant MANIK knew to be untrue.
34. On July 13, 2019, after plaintiff's arraignment, he was compelled to return to court multiple times to contest egregiously false criminal charges alleged against him by defendants, including MANIK, UC 343, and John and/or Jane Doe 1-10

35. Plaintiff was eventually vindicated on November 20th, 2019, when the Criminal Court of City of New York, Kings County decided to dismiss the criminal proceedings in plaintiff's favor by moving the court for the unconditional dismissal of all criminal charges then pending against plaintiff.

36. Defendants, including MANIK, UC 343, and John and/or Jane Doe 1-10, arrested and attempted cause a criminal prosecution to be initiated against plaintiff, because of their desires to use plaintiff's arrest and criminal prosecution as leverage against their true targets, to incur additional overtime compensation, benefits and career favor from the superior officers, to avoid adverse consequences associated with failing to meet NYPD departmental arrest quotas and also to conceal their egregious violations of proper police procedures and gross misconduct, including their fabrications of non-existent observations, evidence, and information.

37. Defendants, including MANIK, UC 343, and John and/or Jane Doe 1-10, knowingly and intentionally made false statements and allegations against Plaintiff and thus, Plaintiff was falsely arrested and charged with Criminal Sale of Marijuana in the fourth degree, and Unlawful Possession of Marijuana, that Defendants knew to be false since Plaintiff did not unlawfully possess marijuana nor criminally sell any marijuana to any degree.

38. At no point did the Defendants, including MANIK, UC 343, and John and/or Jane Doe 1-10, ever observe Plaintiff committing any alleged crimes as well as unlawfully possessing marijuana nor criminally selling marijuana to any degree.

39. At no point were the Defendants, including MANIK, UC 343, and John and/or Jane Doe 1-10, ever told by any witnesses that Plaintiff committed any crime or violation of the law.

40. Defendants, including MANIK, UC 343, and John and/or Jane Doe 1-10, did not possess a valid, judicially authorized arrest warrant for Plaintiff.

41. Defendants, including MANIK, UC 343, and John and/or Jane Doe 1-10 did not possess probable cause or other justification for the arrest or seizure of Plaintiff's person.

42. Defendants, including MANIK, UC 343 and John or Jane Doe 1-10, never possessed probable cause to believe a prosecution would succeed against Plaintiff, or that he was guilty of any crime, as Defendants, including MANIK, UC 343 and John or Jane Doe 1-10, were fully aware that any evidence against Plaintiff was either fraudulent or fabricated, including the observation provided by Defendants, including MANIK, UC 343 and John or Jane Doe 1-10, in which Plaintiff was falsely accused of Criminal Sale of Marijuana in the fourth degree, and Unlawful Possession of Marijuana.

43. While Plaintiff was unlawfully detained, Defendants, including MANIK, UC 343, and John and/or Jane Doe 1-10, acting with malice, conveyed the aforementioned false, misleading and incomplete information to prosecutors in order to have Plaintiff prosecuted for Criminal Sale of Marijuana in the fourth degree, and Unlawful Possession of Marijuana.

44. Defendants, including MANIK, UC 343, and John and/or Jane Doe 1-10, intentionally, knowingly and falsely made said allegations to conceal their otherwise illegal, tortious and sinister acts, namely making an unlawful arrest without an arrest warrant, and arresting an individual without probable cause.

45. Defendants, including MANIK, UC 343, and John and/or Jane Doe 1-10, suppressed evidence and engaged in conduct undertaken in bad faith, including the fabrication of false evidence and the gratuitous use of excessive force against Plaintiff.

46. At all times relevant hereto, Defendants, including MANIK, UC 343, and John and/or Jane Doe 1-10, were involved in the decision to arrest Plaintiff without probable cause or failed to

intervene when they observed others arresting Plaintiff without probable cause or using excessive force to effectuate his arrest.

47. At all times relevant hereto, Defendants, including MANIK, UC 343, and John and/or Jane Doe 1-10, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when Defendants MANIK and UC 343 observed others doing so, all in furtherance of Plaintiff's wrongful arrest and subsequent malicious attempt at a criminal prosecution.

48. Plaintiff asserts that the Defendants, including MANIK, UC 343, and John and/or Jane Doe 1-10, who violated Plaintiff's civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD, and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD, and City of New York or, at the very least, conclusive evidence that the City, NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact their police officers.

49. The individually named Defendants herein, as well as other officers serving in the employ of the NYPD, and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

50. In a report by *NBC Channel 4 News, New York*, entitled "Ex NYPD Sergeant Accused of Assaulting Man at Homeless Shelter, Stomping on His Head More Than 10 Times," by Jonathan

Dienst and Joe Valiquette, horrific allegations against a former NYPD police sergeant were detailed, including his use of extreme and excessive force, as well as his falsifying evidence that was forwarded to prosecutors. The former NYPD sergeant is no longer by NYPD and his criminal case is presently being prosecuted by the United States Attorney's Office for the Southern District of New York. Another article from *citylimits.org*, entitled "CityViews: Is NYPD Oversight Really making Homeless Shelters Safer," by Daniel Castillo, discusses how the NYPD police officers have begun to jointly enforce the law within many homeless shelters, but how such added policing has only worsened the already crime riddled areas. It also details how ongoing problems have only deteriorated since the newly enacted joint jurisdiction.

51. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD, and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to engage in the fabrication or misrepresentation or subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses.. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via some incontrovertible form of evidence.

52. On March 18, 2018, *The New York Times* published an explosive article, entitled "Promotions, Not Punishments for Officers Accused of Lying," written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an

alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers' intentionally false statements, with some allegations coming from federal and state judges.

53. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled "Officers Said They Smelled Pot. The Judge Called Them Liars." Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

54. On April 24, 2019, *The New York Times* published an article, entitled "Detective's Lies Sent Three People to Prison, Prosecutors Charge," by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

55. Other articles include: (i) “Testifying’ by Police: A Stubborn Problem.,” by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) “New York Detective Charged with Faking Lineup Results,” by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) “He Excelled as a Detective, Until Prosecutors Stopped Believing Him,” by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) “Review Board Notes Rise in New York Police Officers’ False Statement,” by J. David Goodman, *The New York Times*, May 14, 2015; (v) “In Brooklyn Gun Cases, Suspicion Turns to the Police,” by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) “Detective is Found Guilty of Planting Drugs,” by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) “The Drugs? They Came From the Police,” by Jim Dwyer, *The New York Times*, October 13, 2011.

56. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD’s commitment to combat the prejudices and the biases exhibited by many of its officers.

57. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiff’s arrest without probable cause.

58. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

59. Defendants' actions, pursuant to Plaintiff's underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of his civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD, and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD, and City of New York.

60. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD, and City of New York.

61. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

62. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City, and the NYPD were fully aware of Defendants' past constitutional

violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD, and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including MANIK, UC 343, and John and/or Jane Doe 1-10.

63. As a direct and proximate result of the acts of Defendants, including the City, whose including MANIK, UC 343, John and/or Jane Doe 1-10, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION
Free Speech Retaliation Claim Under
New York State Law

64. The above paragraphs are here incorporated by reference as though fully set forth herein.

65. Plaintiff engaged in speech and activities that were protected by Article I, Section 8, of the New York State Constitution.

66. Defendants committed impermissible or unlawful actions against plaintiff that were motivated or substantially caused by plaintiff's constitutionally protected speech or activities.

67. Defendants' retaliatory actions against plaintiff resulted in the deprivation of his liberty and the initiation of criminal charges against him.

68. Defendants' retaliatory actions adversely affected plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or activities or by chilling his desire to further participate or engage in such protected speech or activities.

69. Accordingly, plaintiff's right to engage in protected speech and activities, guaranteed and protected by Article I, Section 8, of the New York State Constitution, was violated by defendants.

70. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings, under the doctrine of respondeat superior.

71. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

First Amendment Retaliation Claim Under 42 U.S.C. § 1983 Against Individual Defendants

72. The above paragraphs are here incorporated by reference as though fully set forth herein.

73. Plaintiff engaged in speech and activities that were protected by the First Amendment to the United States Constitution.

74. Defendants committed impermissible or unlawful actions against plaintiff that were motivated or substantially caused by plaintiff's constitutionally protected speech or activities.

75. Defendants' retaliatory actions against plaintiff resulted in the deprivation of his liberty and the initiation of criminal charges against him.

76. Defendants' retaliatory actions adversely affected plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or activities, or by chilling his desire to further participate or engage in such protected speech or activities.

77. Accordingly, plaintiff's right to engage in protected speech and activities, as guaranteed and protected by the First Amendment to the United States Constitution, was violated by defendants.

78. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged

THIRD CAUSE OF ACTION
Unlawful Search and Seizure Under
New York State Law

79. The above paragraphs are here incorporated by reference as though fully set forth herein.

80. Defendants subjected plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

81. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

82. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

83. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.

84. Accordingly, defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to Article I, Section 12, of the New York State Constitution and Article II, Section 8, of the New York Civil Rights Law.

85. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

86. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

Unlawful Search and Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

87. The above paragraphs are here incorporated by reference as though fully set forth herein.

88. Defendants subjected plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

89. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

90. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

91. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.

92. Accordingly, defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution.

93. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

94. The above paragraphs are here incorporated by reference as though fully set forth herein.

95. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without a valid warrant or probable cause.

96. Plaintiff was conscious of his confinement.

97. Plaintiff did not consent to his confinement.

98. Plaintiff's arrest and false imprisonment was not otherwise privileged.

99. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

100. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

101. The above paragraphs are here incorporated by reference as though fully set forth herein.

102. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

103. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

104. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

105. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

1. The above paragraphs are here incorporated by reference as though fully set forth herein.

2. At all relevant times, Defendants caused Plaintiff to fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

3. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without his consent or justification.

4. Due to the intentional, willful and unlawful acts of Defendants, Plaintiff suffered damages.

5. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

6. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

106. The above paragraphs are here incorporated by reference as though fully set forth herein.

107. Defendants initiated the prosecution against Plaintiff.

108. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

109. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

110. The prosecution was terminated in Plaintiff's favor when all criminal charges were dismissed and sealed.

111. Due to the intentional, willful and unlawful acts of Defendants, Plaintiff suffered significant damages.

112. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

113. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

114. The above paragraphs are here incorporated by reference as though fully set forth herein.

115. Defendants initiated the prosecution against Plaintiff.

116. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

117. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

118. The prosecution was terminated in Plaintiff's favor when all criminal charges were dismissed and sealed.

119. Accordingly, Defendants violated Plaintiff's Fourth and Fourteenth Amendment rights.

120. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

121. The above paragraphs are here incorporated by reference as though fully set forth herein.

122. Defendants arrested, detained and caused a criminal prosecution to be initiated against or maintained against Plaintiff to compel the compliance or forbearance of some act.

123. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

124. Defendants intended to inflict substantial harm upon Plaintiff.

125. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

126. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

127. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

128. The above paragraphs are here incorporated by reference as though fully set forth herein.

129. Defendants arrested, detained and caused a criminal prosecution to be initiated or maintained against Plaintiff to compel the compliance or forbearance of some act.

130. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

131. Defendants intended to inflict substantial harm upon Plaintiff.

132. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

133. Defendants' actions deprived Plaintiff of her constitutional rights to free from illegal searches and seizures and to not be deprived of her liberty without the due process of law in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

134. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
New York State Law

135. The above paragraphs are here incorporated by reference as though fully set forth herein.

136. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision.

137. Defendants forwarded said false information to prosecutors within the District Attorney's Office.

138. Defendants' actions resulted in post-arraignment restrictions and deprivations upon plaintiff's liberty and freedom of movement.

139. Accordingly, defendants violated Plaintiff's right to fair trial, pursuant to Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

140. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

141. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

142. The above paragraphs are here incorporated by reference as though fully set forth herein.

143. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision.

144. Defendants forwarded said false information to prosecutors within the District Attorney's Office.

145. Defendants' actions resulted in post-arraignment restrictions and deprivations upon plaintiff's liberty and freedom of movement.

146. Accordingly, defendants violated Plaintiff's right to fair trial, pursuant to the Fifth, Sixth and Fourteenth Amendments to United States Constitution.

147. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Biased Based Profiling under
New York City Law

148. The above paragraphs are here incorporated by reference as though fully set forth herein.

149. Defendants impermissibly relied upon Plaintiff's actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation, as the determinative factor in initiating law enforcement action against Plaintiff, rather than Plaintiff's behavior or other information or circumstances that would link Plaintiff to suspected

unlawful activity.

150. Accordingly, defendants violated plaintiff's rights, pursuant to the Administrative Code of the City of New York, Section 14-151

151. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

152. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
New York State law

153. The above paragraphs are here incorporated by reference as though fully set forth herein.

154. Plaintiff, as a Black male, is a member of a racial minority and protected class.

155. Defendants discriminated against Plaintiff on the basis of his race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation

156. Defendants also engaged in the selective treatment of Plaintiff, in comparison to others similarly situated.

157. Defendants' discriminatory treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of his Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.

158. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

159. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiff.

160. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

161. Accordingly, defendants violated plaintiff's rights, pursuant to Article I, Section 11, of the New York State Constitution, Article VII, Section 79-N, of the New York Civil Rights Law and Section 296, Paragraph 13, of the New York Human Rights Law.

162. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

163. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
42 U.S.C. §§ 1981 and 1983 Against Individual Defendants

164. The above paragraphs are here incorporated by reference as though fully set forth herein.

165. Plaintiff, as a Black male, is a member of a racial minority and protected class.

166. Defendants discriminated against Plaintiff on the basis of his race, color or ethnicity

167. Defendants engaged in the selective treatment of Plaintiff in comparison to others similarly situated.

168. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of his Constitutional rights, or malicious or bad faith intent to injure Plaintiff.

169. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

170. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiff.

171. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

172. Accordingly, defendants violated plaintiff's rights, under the Fourteenth Amendment.

173. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1983, 1985 and 1986 Against Individual Defendants

174. The above paragraphs are here incorporated by reference as though fully set forth herein.
175. Defendants engaged in a conspiracy against Plaintiff to deprive Plaintiff of his rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, to not be deprived of his liberty or property without due process of law, or of the privileges and immunities under the laws and constitutions of the United States and of the State of New York.

176. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.

177. As a result, Plaintiff sustained injuries to his person, was deprived of his liberty or was deprived of rights or privileges of citizens of the United States.

178. Defendants' conspiracy was motivated by a desire to deprive Plaintiff of his civil rights or because of some racial, otherwise class-based, invidious or discriminatory animus.

179. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

180. Accordingly, defendants violated Plaintiff's rights, pursuant to the Fourth, Fifth, Sixth and/or Fourteenth Amendments to the United States Constitution.

181. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

182. The above paragraphs are here incorporated by reference as though fully set forth herein.

183. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

184. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

185. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law

186. The above paragraphs are here incorporated by reference as though fully set forth.

187. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee defendants.

188. Defendant City breached those duties of care.

189. Defendant City placed defendants in a position where they could inflict foreseeable harm.

190. Defendant City knew or should have known of its employees' propensity for committing civil rights violations.

191. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.

As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages her

TWENTIETH CAUSE OF ACTION

Municipal “*Monell*” Liability Under
42 U.S.C. § 1983 Against Defendant City

192. The above paragraphs are here incorporated by reference as though fully set forth.

193. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as plaintiff, to such violative behavior.

194. Defendant City’s employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

195. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City’s deliberate indifference toward the rights of those who may come into contact with defendant City’s employees.

196. Defendant City’s employees engaged in such egregious and flagrant violations of plaintiff’s Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by defendant City and its policymakers toward the rights of individuals, who may come into contact with defendant City’s employees.

197. Defendant City’s repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

198. Defendant City’s conduct caused plaintiff to be deprived of his civil rights, as guaranteed by the Constitution of the United States, via the First, Fourth, Fifth, Sixth & Fourteenth Amendments thereto.

199. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- r) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- s) On the Eighteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- t) On the Nineteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- u) On the Twentieth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - v) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
 - w) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;
- Together with the costs and disbursements of this action.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: July 10, 2020

Respectfully submitted,



SIM & DEPAOLA, LLP
By: Peter Sim, Esq.
Attorneys for Plaintiff
42-40 Bell Blvd - Ste 201
Bayside, New York 11361
T: (718) 281-0400
F: (718) 631-2700

ATTORNEY VERIFICATION

I, Peter Sim, an attorney admitted to practice in the courts of New York State, state that I am a partner with the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff, is because Plaintiff reside outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
July 10, 2020



PETER SIM, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

ELTON FRANCIS,

Plaintiff,

-against-

CITY OF NEW YORK, MOHAMMED MANIK, UNDER COVER 343, AND JOHN OR JANE
DOES 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

BY: Peter Sim, Esq
Attorney for Plaintiff
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for